IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No230

CP(CAA)/10(AHM)2023
in
CA(CAA)/68(AHM)2022

Proceedings under Section 230-232 of Co. Act, 2013

IN THE MATTER OF:

Dhanesh Enterprise Pvt. Ltd. **.....Applicant**
Jenil Enterprise Pvt. Ltd.

.....Respondent

Order delivered on 02/05/2023

Coram:

Deep Chandra Joshi, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant	: Mr. Ravi Pahwa, Adv.
For the Income Tax	: Ms. Pankti Shah, Adv.
For the RD	: None
For the OL	: None

ORDER

Learned Counsel Ms. Pankti Shah appears for the Income Tax Department and states that their reply has been filed. Learned Counsel further states that there are outstanding dues against the transferor company. Learned Counsel Mr. Ravi Pahwa appears for the petitioner companies and states that transferee company undertakes to take up liabilities of the transferor company and undertakes to pay outstanding tax demand as per law. Subject to the statement made by the Learned Counsel for the petitioner companies, Learned Counsel for the Income Tax Department states that she has no objection to the approval of the scheme. RD & OL report have come on record. None appears for the RD & OL. However, according to the Learned Counsel for the petitioner companies, there are no objection to the scheme in the report of RD and OL. One last chance is given to RD & OL to represent their case.

List for hearing on 16.05.2023

-Sd-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

-Sd-

DEEP CHANDRA JOSHI
MEMBER (JUDICIAL)

Prakash - Steno